of the railroad company to do so, and one of these actions was brought to recover the expenses thus incurred by the city in making such repairs and renewing such pavement.

Mr. Arthur P. Rugg, with whom *Mr. John R. Thayer* was on the brief, for plaintiff in error:

The conditions contained in the grants of extensions were legally imposed, the city and the railroad company were empowered to enter into contracts and the acceptance of the location with the conditions constituted a contract and the obligation to pave assumed by the contract is a property right which cannot be taken from the city without due process of law.

As to what is a property right within the Fourteenth Amendment see *Campbell* v. *Holt,* 115 U. S. 620. Restrictions constitute valuable property rights. *Soulard* v. *United States,* 4 Pet. 511; *Metropolitan City Ry. Co.* v. *Chicago,* 87 Illinois, 317. Under the Massachusetts laws the municipality has certain property rights with reference to highways and the repair thereof. Rev. Laws, c. 51, §§ 1, 17, 18, 23; *Butman* v. *Newton,* 179 Massachusetts, 1, 6; *Perry* v. *Worcester,* 6 Gray, 544; *Deane* v. *Randolph,* 132 Massachusetts, 475; *Hill* v. *Boston,* 122 Massachusetts, 344; *Pratt* v. *Weymouth,* 147 Massachusetts, 245, 254; *Brookfield* v. *Reed,* 152 Massachusetts, 568; *Collins* v. *Greenfield,* 172 Massachusetts, 78, 81; *Tindley* v. *Salem,* 137 Massachusetts, 171. Under the laws of Massachusetts the municipality has authority to arrange for the repair of streets. *Morrison* v. *Lawrence,* 98 Massachusetts, 219; *Sampson* v. *Boston,* 161 Massachusetts, 288; *Cavanagh* v. *Boston,* 139 Massachusetts, 426; *Smith* v. *Rochester,* 76 N. Y. 506; *Anthony* v. *Adams,* 1 Metc. 284.

This property right cannot be taken from the city by the legislature. Legislative power over the municipality is very extensive, but it is not universal and does not extend to property acquired for special purposes or to rights of immunity, in which respect the city has the same rights as the individual